

SENATE BILL 2306

By Pody

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 62, Chapter 3; Title 62, Chapter 38 and Title
62, Chapter 4, relative to professions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 62-4-109(a), is amended by adding the following as a new subdivision:

() Any person whose occupation or practice is confined solely to makeup application services; provided, that the person complies with § 62-4-140;

SECTION 2. Tennessee Code Annotated, Title 62, Chapter 4, Part 1, is amended by adding the following as a new section:

62-4-140.

(a) As used in this section:

(1) "Commissioner" means the commissioner of commerce and insurance, or the commissioner's designee; and

(2) "Department" means the department of commerce and insurance.

(b) Before engaging in makeup application services, a person shall:

(1) Attend eight (8) hours of training in health and hygiene, either in person or online, as approved by the commissioner, receive a certificate indicating attendance from the training, attest to the one-time training at biennial registration, and retain and display the certificate on request;

(2) Biennially register with the department, providing a name, address, and phone number at which the person can be reached, and pay a registration fee of thirty dollars (\$30.00); and

(3) Post a notice at the place of operation indicating that the person is not licensed by the state board of cosmetology and barber examiners.

(c) A person providing makeup application services pursuant to this section shall not:

(1) Refer to themselves as a licensed cosmetologist, unless the person otherwise meets the requirements under § 62-4-110(a), or licensed aesthetician, unless the person otherwise meets the requirements under § 62-4-110(d); or

(2) Provide services other than makeup application unless the person holds the required certificate or license, including placing or applying artificial eyelashes or tattooing permanent or semipermanent makeup.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.